

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 13, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited. Mayor Orr recognized that Buck Holmes, Laramie County Commissioner and Kathy Emmons, City/County Health Department Director were in attendance.

Recognition of Rocky Case for his service as City Council President for 2019. Mayor Orr provided a gavel plaque to Mr. Case and expressed appreciation for his services as Council President in 2019. Mr. Case expressed appreciation for the opportunity to serve as president, reflected on the past year generally and thanked co-elected officials and the community.

Election of City Council President for 2020. Mayor Orr announced that pursuant to Title 2 of Cheyenne City Code the Mayor conducts the election for the office of City Council President but does not cast a vote. Mr. Luna nominated Dr. Rinne, seconded by Mr. Shanor. Dr. Rinne accepted the nomination. There being no further nominations, Mr. Shanor moved to cease nominations, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Motion to nominate and elect Dr. Rinne as City Council President for 2020 carried. Voting “yes” – all members of the governing body with the exception of Mr. Esquibel voting “no”.

Election of City Council Vice-President for 2020. Mayor Orr announced that pursuant to Title 2 of Cheyenne City Code the Mayor conducts the election for the office of City Council President but does not cast a vote. Dr. Rinne moved to nominate Mr. White, seconded by Mr. Roybal. There being no further nominations, Mr. Roybal moved to cease nominations, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. Mr. White accepted the nomination. Motion to nominate and elect Mr. White as City Council Vice President for 2020 carried. Voting “yes” – all members of the governing body.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing.

[CA] Minutes from Regular Meeting of the Governing Body on December 19, 2019. Motion (per Consent Agenda) carried.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, the North 1/2 of Lot 4, Williams Subdivision, Laramie County, Wyoming (located northeast of the intersection of Marshall Road and Storey Boulevard). Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County LR Low-density Residential to City LR Low-density Residential for the North 1/2 of Lot 4, Williams Subdivision, Laramie County, Wyoming (located northeast of the intersection of Marshall Road and Storey Boulevard). Dr. Rinne moved to approve on second reading, seconded by Mr. Shanor. Dr. Rinne advised there was considerable discussion at the January 7, 2020 Public Services Committee meeting involving access issues to the area relating to emergency services. Dr. Rinne further advised Charles Bloom, Planning & Development Director, will provide a proposal to rectify the access issues at the next Public Services Committee meeting (January 22, 2020). Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map of the Unified Development Code, changing the zoning classification from LR Low Density Residential to NR-2 Neighborhood Residential - Medium Density for the west half of Lot 2 and all of Lot 3, Sunnyside Addition, 8th Filing, Cheyenne, Wyoming (located at the southeast corner of Dell Range Blvd. and Van Buren Ave.) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Amending Chapters 8.40, Food and Food Service Establishments, within Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, and Chapters 10.12, Administration and Enforcement, 10.16, Arrest and Citation Procedure, 10.52, Stopping, Standing and Parking Generally, 10.60, Parking Limitations, 10.64, Loading and Unloading, 10.68, Critical Traffic and Parking Areas, within Title 10, Vehicles and Traffic, of the City of Cheyenne Municipal Code – referred to Public Services Committee. (Sponsors – Mr. Cook and Dr. Rinne)

[CA] RESOLUTION – Designating local banks as depositories for municipal. Motion (per Consent Agenda) carried. (#6033)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Office on Violence Against Women OVW-2020-17563 Improving Criminal Justice Responses to Domestic Violence, Dating Violence, Sexual Assault, and Stalking Grant Program CFDA Number 16.590-Grants to Encourage Arrests Policies and Enforcement of Protection Orders Program. Motion (per Consent Agenda) carried. (#6034)

[CA] RESOLUTION – Reappropriating the fiscal year 2020 budget of the City of Cheyenne according to the provisions of W. S. §16-4-112 & §16-4-113 – referred to Finance Committee.

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to execute State Historic Preservation Office Certified Local Government (CLG) Grant Agreements for two 2020 CLG Grants (Board Training to attend two Historic Preservation conferences, and the Cheyenne Façade Improvement Program Project) – referred to Finance Committee.

[CA] Lease agreement between the City of Cheyenne and The Girl Scouts of Montana and Wyoming, for 45.93 acres of city-owned real property located near the former Roundtop Water Treatment Facility to be used for the purposes of conducting activities consistent with the By-Laws and Articles of Incorporation of the Girl Scouts of Montana and Wyoming. Motion (per Consent Agenda) carried (revenue to the City). (#7122)

Memorandum of Understanding between Laramie County, Wyoming, and the City of Cheyenne, Wyoming, for the acquisition of Lots 2, 3, and 4 of Frontier Park, a subdivision to the City of Cheyenne, consisting of 3.78 acres, situated in portions of Government Lots 1 and 2, NE ¼ NE ¼ and SE ¼ NE ¼ of Section 25, Township 14 North, Range 67 West, of the 6th P.M., City of Cheyenne, Laramie County, Wyoming. Tucker Fagan, City of Cheyenne-Laramie County Joint Powers Board Chairman, reported the Board subleases to Cheyenne Frontier Days (CFD) and requested approval. He explained the City is reclaiming Lots 2, 3, and 4, which is an area of land by Kennedy Dr. on the north side of park and advised it was previously used for the Laramie County Fair but is no longer needed since the fair has moved entirely to the Archer Complex. Buck Holmes, Laramie County Commissioner, thanked the City for use of land in previous years and explained the County wishes to deed that property back to the City. Mr. Holmes advised the Laramie County Commissioners have looked into removing the buildings but found it is not economically feasible, therefore, they are leaving them for CFD to use. Tom Hirsig, Cheyenne Frontier Days CEO, thanked the County for working with them over the years with the buildings and advised CFD does have some needs for carriage storage and can potentially use the buildings for CFD rodeo needs. Reporting for Finance Committee, Mr. White moved to approve, seconded by Mr. Luna. Mr. White moved to amend by substitute dated January 6, 2020, seconded by Mr. Case. Mr. White explained the amendment is to provide clarification of the property description on the title. He explained there is an amendment for the MOU and an amendment for the affiliated contract, agenda item #18 (b), for the same purpose. Motion to amend carried. Voting “yes” – all members of the governing body. Upon inquiry, Mr. Hirsig confirmed maintenance of structures will be the responsibility of CFD. Main motion as amended carried. Voting “yes” – all members of the governing body. (#7123)

[CA] Agreement between the City of Cheyenne and A to Z Recreation LLC, for the Lincoln Park Play System Project. (Development Impact Fees, Special Revenue Fund, CDBG Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$206,697.00). (#7124)

[CA] Agreement for services between the City of Cheyenne and the Church of St. Mary for Olivet Cemetery grounds maintenance, operations and office administrative services. Motion (per Consent Agenda) carried (revenue to the City). (#7125)

[CA] Sponsorship Agreement between the City of Cheyenne and Charles Schwab, Independent Leader Sam Runyan, for a 7 year Stage Sponsorship for the Fridays on the Plaza (FOTP) events (Revenue to the City) – referred to Finance Committee.

[CA] Volleyball Officiating Agreement between the City of Cheyenne and Officials for Fun Club for adult City league volleyball officiating services during the Winter 2020 season (Recreation Special Revenue Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Wyoming, the City of Cheyenne Board of Public Utilities and the Laramie County Conservation District for the implementation of the design for the Crow Creek Revival Phase I that will improve the aquatic health of Crow Creek – referred to Finance Committee.

Professional Services Agreement between the City of Cheyenne, Wyoming, and AVI Professional Corporation, for the Capitol Basin 26th Street Storm Sewer Extension Design Project (Specific Purpose Option Tax Fund - 2012 Ballot Overages) – referred to Public Services Committee. Dr. Rinne explained the item was heard under other items at the January 7, 2020 Public Services Committee, therefore, provisions of Title 2 of City code have been met. Dr. Rinne moved to approve, seconded by Mr. Roybal. Tom Cobb, City Engineer, explained the agreement was delayed due to negotiations with the SLIB office and the necessary documents were not available for Council committee consideration until Tuesday, January 7, 2020. Mr. Cobb advised the agreement should be expedited for protection of the Capitol Project and noted he will be asking for expedition of another affiliated contract. Mayor Orr explained the Engineering Department is acting on a resolution adopted by the Governing Body, sponsored by Mr. Laybourn, to expedite the process. Mr. Cobb explained the Request for Proposal (RFP) process was completed prior to him taking the City Engineer position and that 5 proposals were received, and 3 firms were interviewed with AVI being selected. Comment was made on the process of bringing items up under other items for the agenda at standing Council committees and inquiry was made related to the necessity to do so with a large-scale project. Concern was expressed regarding the expenditure and expediting the agreement without additional understanding about the protection of the State and the critical project for downtown. Dr. Rinne advised there was discussion at the January 7, 2020 Public Services Committee regarding necessity of bringing the item up under other items to expedite the project by 2 weeks, noting construction isn't likely to begin until after Cheyenne Frontier Days. Mr. Cobb explained the purpose is to expedite the design of the project so they can begin to understand what is underground in an effort to be prepared for construction. He noted projects of this nature often have unforeseen issues to address that often stall construction. Comments were made regarding how dangerous the TCE plume is and the importance of learning additional information prior to approval. Additional comments were made in support of expediting the project and concern regarding proper protocol. Mr. Shanor moved to refer the item to Finance Committee and to postpone to January 27, 2020, seconded by Mr. Laybourn. Kris Jones, City Clerk, upon inquiry, explained the postponement would result in a 2 week delay. Discussion continued and included: support for the motion to refer the item to Finance Committee and postpone, selection process for the project, the importance of the project and sending the item to the appropriate committee. Motion to refer to Finance Committee and postpone to January 27,

2020 carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr, Mr. Cook, Mr. Esquibel, and Mr. Roybal voting “no”.

[CA] Purchase and Sale Agreement between DSK Ranch, LLC, and the City of Cheyenne for real property described as a Portion of the East Half of the East Half (E½E½) of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, in the amount of \$2,500,000.00 to be used as a future City park in accordance with the terms of the 2017 1% Specific Purpose Sales and Use Tax Ballot and Election (Specific Purpose Option Tax Fund - 2017 Ballot) – referred to Finance Committee.

[CA] Amendment No. #1 to Contract #7041 to Lease No. 8-09466 between the State of Wyoming, Department of Administration and Information, General Services Division, and the City of Cheyenne, to decrease the number of leased parking spaces from eighty-two (82) to seventy (70) at the George Cox Parking Structure. Motion (per Consent Agenda) carried (revenue to the City). (#7041)

Amendment #5 to Contract #2985 between the City of Cheyenne and the City of Cheyenne-Laramie County Joint Powers Board, for the acquisition of Lots 2, 3, and 4 of Frontier Park, a subdivision to the City of Cheyenne, consisting of 3.78 acres, situated in portions of Government Lots 1 and 2, NE ¼ NE ¼, and SE ¼ NE ¼ of Section 25, Township 14 North, Range 67 West, of the 6th P.M., City of Cheyenne, Laramie County Wyoming. Tucker Fagan, City of Cheyenne-Laramie County Joint Powers Board Chairman, explained the amendment would execute transfer of the lots to the City and expressed appreciation to the City Attorney’s office for assistance in preparing the amendment to clarify the property description. Mr. White moved to approve, seconded by Mr. Esquibel. Mr. White moved to amend by substitute dated January 6, 2020, seconded by Mr. Esquibel. Motion to amend carried. Voting “yes” - all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#2985)

[CA] Consideration of Bid #E-8-20 for furnishing One (1) Bomb Squad Robot, for the City of Cheyenne, Cheyenne Police Department. (Homeland Security Grant, Project #2000563). Motion (per Consent Agenda) carried (accepted bid from Northrop Grumman/Remotec, Inc., Clinton, TN, in an amount not to exceed \$227,354.00).

[CA] Consideration to purchase between the City of Cheyenne, and Titan Machinery Company, Gillette, WY, for the repair of Street and Alley Vacuum Truck Block #5889 (Fleet Maintenance) – referred to Finance Committee.

Appointments of Dennis Rafferty to the Housing and Community Development Advisory Council; Sally Sato the Mayor’s Council for Disabilities; Kathy Emmons and Lieutenant Eric Kent to the Laramie County Juvenile Services Joint Powers Board. Mr. Luna moved to approve, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointment).

Voucher Report. No comments were made.

Announcement of a Public Hearing to be held January 27, 2020 for a proposed sale of real property owned by the City of Cheyenne, described as Lots 1 through 12, Block 2, Roberts Place Addition, City of Cheyenne, Laramie County, Wyoming, and more commonly referred to as 610 West 7th Street, Cheyenne, Wyoming, for the proposed price of \$569,780.00, to the Laramie County School District Number One for the essential future development of a new elementary school.

Announcement that due to the Martin Luther King Jr. Holiday on Monday, January 20, 2020, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O'Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 21, 2020 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 22, 2020 at Noon.

Under other business:

Donn Edmunds voiced concerns relating to high-powered pickup truck headlights impeding the vision of other drivers and requested the governing body consider taking action against the headlights.

Mr. Laybourn provided comments relating to City goals for fiscal year 2020 of the governing body and requested consideration to hold goal setting sessions and additional work sessions noting the City of Casper posts their annual and on-going goals in City Hall for the benefit of the public. Mr. Laybourn further commented on the upcoming legislative session and questioned what assistance, if any would the City have for important matters, noting in the past there has been a lack of communication and joint understanding. Mr. Esquibel advised there was a recent opportunity to meet with legislative delegations and there was a strong presence from the town of Albin. Mr. Esquibel advised he looks forward to working with the governing body on legislative matters and goals. Mayor Orr explained the City has been utilizing the Strat-Op process and is open to meeting with members of the governing body to discuss the process project.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:41 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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